

Present: Sh.L.S.Raghav, Advocate for the complainant SFIO.

Sh. Hari Kishan, Prosecutor for SFIO (through VC).

Sh. Jai Singh Chauhan, AR of (A-86, A-87, A-88) on bail with Sh. Neeraj Gaur, Advocate.

Sh.Rahul AR of (A94 to A97) and Naresh Kumar, AR of (A-98) on bail with Sh.Ravi Yadav, Advocate.

Sh. Abhishek Kumar (A-101) and Deepak (A-102) on bail with Sh.Ranjan Kumar, Adv.

Sh. H.S.Sehrawat, Advocate for Mohd. Miraj(A-103).

Sh. Pawan Sharma (A-104), Anoop Kumar (A-105) on bail.

Sh. Nitesh Bhardwaj, Advocate for Neeraj Kumar (A-106).

Sh. Fateh Singh AR of A-107 with Sh. Karan Sinha, Adv.

Sh. Mohd. Jishan (A-108) and Vikas Paul (A-109) on bail with Sh. Ranjan Kumar, Adv.

Sh. Sachin Sharma, Advocate for Raju Yadav (A-110).

Accused Ritik Sharma (A-111) on bail with Sh. Ranjan Kumar, Advocate.

Accused Vivek Harivyasi (A-115) on bail with Sh.Vishal Gupta, Advocate.

Accused Megha Chauhan (A-163), Indu Tak (A-164), Ravi Tak (A-166) and Raj Kumar Bohra (A-171) on bail with Sh. Neeraj Gaur, Advocate.

Accused Joydeep Das Gupta (A-144), Lovekush Sharma (A-145), Avnish Kumar Tyagi(A-148) and Poonam Madan (A-151) (exempted vide order dated 22.11.2019) represented by Sh. Vishal Gupta, Advocate.

Sh. Punit Sharma, Advocate for Vijay Shukla (A-149).

Accused Bharat Kumar Mardia (A-154), Parveen Maheshwari (A-156) and Rajeev Maheshwari (A-157) (permanent exemption) represented by Sh. Peeyush Jain, Advocate.

Accused Leena Harivyasi (A-146) on bail with Sh. Vishal Gupta, Advocate.

Accused Vimal Sanwarmal (A-147) on bail with Sh.Puneet Sharma, Advocate.

Accused Ajit Singh Rathore (A-150) and Ram Lal Arya (A-158), on bail with Sh. Pawan Raghav, Advocate.

Accused Hemant Kumar Jain (A-159), Parveen Kumar (A-161) on bail with Ms. Sunita Saini, Advocate.

Accused Parvmveer Singh Sangwan (A-174) on bail with Sh. Vishal Yadav, Advocate.

Accused Damyanti Bhandari (A-179) on bail with Sh. Sanjay Gupta, Advocate.

Accused Nimesh Kumar (A-182), Rituraj Singh (A-183), Dushyant Singh Rathore (A-184), Shashank Shekhar Singh Rathore (A-185), Jitesh Kumar Parmar (A-186) on bail with Sh.Pawan Raghav and Smit Saini, Advocates.

Accused Mahesh Kumar Tak (A-187) stated to be dead.

In custody

Accused Jainam Rathod (A-130), Surender Singh (A-140), Raj Kumar Modi (A-176) in custody (through VC Bhondsi jail) represented by Sh. Karan Sinha, Advocate.

Accused Vijay Jhindhal (A-175) in custody with Sh. Vijay Aggarwal, Advocate.

The case is fixed for presence of the accused persons. No other accused except the accused persons mentioned above has appeared. Accused A-107 Padmawati Art Creation Pvt. Ltd. has appeared through AR Sh. Fateh Singh with Sh. Karan Sinha, Adv. His summoning is complete. Ichhita Dunderwal (A-180) and Neha Kataria (A-181) have not appeared. Notice be issued to them. Bailable warrants against accused A-83, A-139, A-152, A-153 and non bailable warrants issued against A-116, A-118, A-119, A-121, A-127, A-128, A-129, A-133, A-135, A-136, A-137, A-138, A-141, A-143, A-160, A-162, A-165, A-170, A-172, A-173, A-177, A-187 have been received back unexecuted. Accused Mahesh Kumar Tak (A-187) was earlier reported dead. Now accused Mahender Kumar Tak (A-155) is also reported dead.

Applications for exemption from personal appearance of ARs of accused No.103, 106, 110 have been moved. In view of the grounds mentioned in these applications, personal appearance of accused Mohd. Miraj, Neeraj and Raju Yadav (ARs of accused No.103, 106, 110) is exempted for today only.

Application for exemption from personal appearance of accused No.174 Paramvir Sangwan till further orders has been moved on the ground that he is 74 years of age and is suffering from various old age diseases and in wake of his medical condition he has high risk of being infected with pandemic Covid-19. The case is still at the initial stage of appearance. In these circumstances, personal appearance of applicant-accused Paramvir Sangwan (A-174) is exempted till further orders.

It is submitted by learned counsel for applicant-accused

Vijay Shukla (A-149) that he has been granted protection by the Hon'ble High Court against coercive methods. As such, no coercive methods shall be taken against accused Vijay Shukla (A-149) till further orders by the Hon'ble High Court.

Accused Mukesh Modi (A-113), Rahul Virender Modi (114), Vaibhav Lodha (A-120), Virender Modi (A-122), Rohit Modi (A-123), Rajeshwar Singh (A-125), Bharat Modi (A-126), Ishwar Singh Sandal (A-131), Vivek Purohit (A-134), Bharat Dass Vaishnav (A-142) who are in custody have not been produced. It is stated that all these accused persons have been taken on police remand by the Rajsathan Police. Fresh production warrants be issued against them for 05.03.2021 and they be produced in the Court through VC.

Accused Jainam Rathod (A-130), Surender Singh (A-140), and Vijay Jhindhal (A-175 ), Raj Kumar Modi (A-176) be produced through VC on 5.3.2021.

Applications of accused Ajit Singh Rathore (A150), Ram Lal Arya (A158), Hemant Kumar Jain (A159), Parveen Kumar (A161), Damyanti Bhandari (A-179), Nimesh Kumar Camesh Chandra Soni (A182), Ritu Raj Singh (A183), Dushyant Singh Rathore (A184), Shashank Shekhar Singh Rathore (A-185) and Jitesh Kumar Parmar (A186), for becoming approver are also pending. For want of physical appearance of the I.O, a date is requested by learned counsel for the SFIO for getting their statements recorded. Allowed. As recording of statements of the approvers will take sufficient time and as agreed between the parties, file be put up on 5.3.2021 for recording statements of accused Ajit Singh Rathore (A150), Ram Lal Arya (A158). Likewise, statements of accused Hemant Kumar Jain (A159) and Jitesh Kumar Parmar (A186) be recorded on 19.3.2021. Statements of accused Damyanti Bhandari (A-179) and Nimesh Kumar Camesh Chandra Soni (A182) be recorded on 2.4.2021. Statements of accused Ritu Raj Singh (A183) and Shashank Shekhar Singh Rathore (A-185) be recorded on 16.4.2021 and statements of accused Parveen Kumar

(A161) and Dushyant Singh Rathore (A184) be recorded on 30.4.2021.

The accused on bail are directed to appear in the court on 7.5.2021. Bailable warrants/non bailable warrants against the remaining accused who have not secured bail or have not been granted any protection or have not been exempted from appearance be issued as per earlier orders for 07.05.2021. Death report of accused Mahender Kumar Tak (A-155) and Mahesh Kumar Tak (A-187) be also called from the concerned SHO.

(Mohinder)  
Stenographer-I

(Dr. D.N.Bhardwaj)  
Additional Sessions Judge,  
Gurugram, UID NO.HR-0100  
19.02.2021